IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

Dated 06.03.2023

CP(CAA) No. 24 of 2021
Connected with CA(CAA) No. 87 of 2020

(Petition under Section 230-232 of the Companies Act, 2013 in the matter of Scheme of Arrangement in the nature of compromise and arraignment with the Secured and Unsecured Creditors of M/s. Maxroth Impex Private Limited (under liquidation) and reorganization of the share capital filed under regulation 2B of the IBBI (regulation) 2016 (liquidation regulation].

In the matter of

Mr Parag Sheth Liquidator of
M/s. Maxroth Impex Private Limited
(Under Liquidation)
Having its address at:
404, Sachet 2, Opp. GLS University,
Maradia Plaza, C.G. Road,
Ahmedabad, Gujarat- 380006

……. **Applicant**

For Clarification

The company petition as referred above was reserved for order. However, from records, we find that the scheme, which is filed pursuant to liquidation proceedings under regulation 2B of IBBI (regulation) 2016, proposes to reduce the dues of unsecured creditors and unsecured loan by 80% through compromise. The Chairman's Report, available at page No. 283 of the company petition, reflects that 8 unsecured creditors having outstanding dues of Rs 1,36,31,438/- representing 80.99 % of the total value of outstanding dues had attended the meeting. Out of those 8 unsecured creditors, 6 voted in favour of the Scheme (with modification) and two voted against it. We also noted that the Annexure-A containing thereof a brief on various clauses of the original scheme as well as modified scheme, which is placed at page Nos. 291 to 297 reflects the dues of unsecured creditor/loan

as on the cut of date at Rs 58.48 lacs (29.19+29.29). As per scheme, this amount of Rs 58.48 lacs is being reduced by 80 % and the balance of Rs 11.70 lacs is proposed to be paid in full and final settlement. The RD has also made and an adverse remark over such reduction which is against the interests of unsecured creditors more so against those who had either not consented to or had not participated in the meeting.

The applicant is required to explain as to how such proposal could be considered for an approval under section 230 of the Companies Act. The applicant is also directed to explain the discrepancy in the figure of unsecured creditors/loan as given in the Chairman's report (pages 283 & 293). With that the matter is released for clarification to be given on 07.03.2023.

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

Rajeev /Neeraj